

12. *Melendez v. Kennedy, et al*, Case No. CIVSB2530506
Motion to be Relieved as Counsel for Plaintiff Melendez
8/26/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion by DK Law to be relieved as counsel for Plaintiff Melendez

Here, the DK Law firm seeks to be relieved as counsel for Plaintiff Melendez. The motion is supported by a declaration establishing good cause pursuant to rule 1.16(b) of the Rules of Court. The Court is inclined to **GRANT** this unopposed motion. Relief is not final until the ruling is served on Plaintiff and a filed proof of service demonstrating that service.

Plaintiff Melendez is ordered to appear at the next hearing. The Court will inquire regarding his plans regarding representation and prosecution of this case.

13. *Peimbert v. Perez, et al*, Case No. CIVSB2412010
Defendant's Motion for Leave to File an Amended Answer
8/26/26, 9:00 a.m., Dept. S-17

This matter was continued from June 11, 2026

The Court is inclined to **GRANT**.

Here, the initial matter was brought as an *ex parte* application for leave to file an amended answer on April 22, 2026, in order to clarify a statute of limitations affirmative defense. The supporting declaration did not include a proposed amended answer at that time. (See Lopez Decl., filed April 21, 2026.)

The matter was twice continued to allow the parties to continue to meet and confer and also for further briefing. A supplemental declaration that included a copy of the proposed First Amended Answer was submitted on July 30, 2026. No further opposition was submitted.
